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Case Number: 26TRCV00704 Hearing Date: July 6, 2026 Dept: P

Demurrer to Plaintiff's First Amended Complaint and Motion to Strike

Moving Party: Defendants Didi Hirsch Psychiatric Service (erroneously sued as Didi Hirsch Mental Health Services), Felicity Burgher, Christina McCue, Benjamin Wegner, Shanay Russell, Mei Ling Acevedo, and Jennifer Kaluhiokalani

Responding Party: None

RULING

The court considered the moving papers. Defendants' special demurrer to Plaintiff's FAC is SUSTAINED in its entirety without leave to amend, and Defendants' motion to strike is GRANTED.

PROCEDURAL BACKGROUND

On March 3, 2026, Plaintiff Larry William Robinson ("Plaintiff") filed a complaint against Defendants Didi Hirsch Mental Health Services ("Didi Hirsch"), Felicity Burgher ("Burgher"), and Christina McCue ("McCue"), alleging six causes of action for: (1) Fraud; (2) Negligent Breach of Contract; (3) Infliction of Emotional Distress; (4) Other Professional Health Care Malpractice; (5) Defamation; and (6) Other Civil Complaint.

On April 20, 2026, Defendants Didi Hirsch, Burgher, and McCue filed a demurrer to Plaintiff's complaint along with a motion to strike.

On April 22, 2026, Plaintiff filed a first amended complaint ("FAC") against Defendants Didi Hirsch, Burgher, McCue, Benjamin Wegner ("Wegner"), Shanay Russell ("Russell"), Mei Ling Acevedo ("Acevedo"), and Jennifer Kaluhiokalani ("Kaluhiokalani"), alleging four causes of action for: (1) Conspiracy to Commit Offense or to Defraud and Fraudulent Billing (Cal. Penal Code Section 72); (2) Violation of SB 221 (Health & Safety Code Section 1367.03); (3) False Personation (Cal. Penal Code Section 529); and (4) Defamation of Character (Cal. Civil Code Section 44).

On May 28 and 29, 2026, Defendants Didi Hirsch, Burgher, and McCue filed the instant demurrer and motion to strike. On June 8, 2026, Defendants filed a notice of joinder to the demurrer and motion to strike of Defendants Wegner, Russell, Acevedo, and Kaluhiokalani.

FACTUAL BACKGROUND

Plaintiff alleges that on October 10, 2024, Plaintiff arrived for a scheduled session which was cancelled after staff members concluded that Plaintiff was under the influence of marijuana. (FAC, ¶ 1.) Plaintiff alleges that on October 17, 2024, he emailed his mental health team seeking treatment adjustments, and that Defendant McCue responded, stating that Plaintiff was unable to receive services elsewhere and needed to select a provider immediately. (FAC, ¶ 2.) Plaintiff alleges that Defendant Burgher refused to return Plaintiff to his original biweekly schedule. (FAC, ¶ 2.)

Next, Plaintiff alleges that during a phone call with Plaintiff, Defendant McCue claimed to possess documents stating that Plaintiff was receiving dual services. (FAC, ¶ 3.) Plaintiff alleges that between October 30 and November 1, 2024, Defendants Wegner and Kaluhiokalani sent messages that Plaintiff was unable to access, and Defendant Acevedo provided an incomplete billing statement on November 4, 2024. (FAC, ¶ 4.) Plaintiff alleges that Defendants McCue and Burgher falsely billed Plaintiff. (FAC, ¶5.)

LEGAL STANDARD

A party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc. Section 430.10(e).) A party may also demur to a pleading on the grounds that the pleading is uncertain. (Code Civ. Proc. Section 430.10(f).) A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) A special demurrer for uncertainty under Code of Civil Procedure section 430.10(f) is disfavored and will only be sustained where the pleading is so bad that defendant or plaintiff cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.)

When considering demurrers, courts accept all well pleaded facts as true. (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, supra, 147 Cal.App.4th at 747.) On demurrer, a court does “not accept contentions, deductions or conclusions of fact or law.” (Simonyan v. Nationwide Insurance Company of America (2022) 78 Cal.App.5th 889, 895.)

Although courts construe pleadings liberally, sufficient facts must be alleged to support the allegations pled to survive a demurrer. (Rakestraw v. California Physicians' Serv. (2000) 81 Cal.App.4th 39, 43.) Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on the party who filed the pleading subject to demurrer to show the court that a pleading can be amended successfully. (Ibid.)

DISCUSSION

Moving Party's Argument

Defendants demur to the entirety of the FAC on the grounds that the causes of action alleged in the body of the FAC do not match the causes of action listed on the caption page, adds new defendants while alleging that they acted for “Abode Communities,” and fails to identify which claims are asserted against which specific defendant.

In support of their motion to strike, Defendants argue that the FAC contains several criminal accusations, statutory labels, demands for punishment, and speculative damages allegations that are not connected to any sufficiently alleged civil cause of action. Defendants argue that Plaintiff refers to several Penal Code sections that do not permit the private civil remedies sought by Plaintiff. Defendants argue that Evidence Code Section 1014 operates as an evidentiary privilege rather than a

damages statute, and Health and Safety Code Section 1367.03 similarly does not offer private tort relief. Defendants argue that the FAC contains conclusory characterizations of Defendants' conduct and argues that Plaintiff's damages demand is speculative.

Merits of the Motion

A. Meet and Confer Requirements

Before filing a demurrer, the demurring party is required to meet and confer "in person, by telephone, or by video conference with the party who filed the pleading that is subject to the demurrer for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer." (Code Civ. Proc. Section 430.41(a).)

Here, Defendants' counsel declares that on April 23, 2026, he emailed Plaintiff a meet and confer letter, but the parties have not reached an agreement. (Pittman Decl., ¶¶ 4-5.)

Because Defendants' counsel has not stated that the parties met in person, by telephone, or by video conference, the court finds that the meet and confer requirements have not been satisfied. However, the court will still discuss the merits of Defendant's demurrer because a failure to comply with the meet and confer requirements alone does not defeat a demurrer. (Code Civ. Proc. Section 430.41(a)(4).)

B. Uncertainty: CCP Section 430.10(f)

California Code of Civil Procedure Section 430.10(f) provides that a party may object to the complaint filed against them by demurrer to the pleading on the grounds that "the pleading is uncertain," a term which "includes ambiguous and unintelligible." (Code Civ. Proc. Section 430.10(f).) A demurrer for uncertainty will only be sustained where the defendant cannot reasonably respond to the complaint, such that the defendant cannot reasonably determine what claims are directed against her, or what issues must be admitted or denied. (Khoury, supra, 14 Cal.App.4th at 616.)

However, if a complaint does not properly distinguish between multiple defendants, such that it is not clear which factual allegations are made as to which parties, the complaint fails for ambiguity. (See *Hawley Bros. Hardware Co. v. Brownstone* (1899) 123 Cal. 643, 646-647.) Allegations made against multiple defendants are fatally uncertain where plaintiff alleges the same harm against multiple defendants but makes no effort to either apportion their liability or show why it cannot be apportioned in the complaint. (See *Landau v. Salam* (1971) 4 Cal.3d 901, 909.)

Here, Defendants argue that the FAC is fatally uncertain because its caption lists six purported causes of action that do not correspond to the body of the FAC or causes of action listed at the top of the second page of the FAC. Defendants also argue that the FAC is uncertain because Plaintiff alleges that each newly added Defendant (including Defendants Wegner, Russell, Acevedo, and Kaluhiokalani) were employees or agents of "Abode Communities," which is inconsistent with Plaintiff's attempt to sue Didi Hirsch and its employees. Defendants argue that the FAC fails to identify which acts were allegedly undertaken on behalf of Didi Hirsch, which acts were allegedly undertaken on behalf of Abode Communities, or which Defendant is allegedly liable under which theory.

The court agrees that the FAC is fatally uncertain. The caption of the FAC lists six causes of action for: (1) Fraud; (2) Negligent Breach of Contract; (3) Defamation; (4) Other Professional Health Care; (5) Civil Rights; and (6) Intentional Infliction of Emotional Distress. However, the second page of the FAC lists seven causes of action for: (1) Presenting False Claims (Insurance Fraud) pursuant to Cal. Penal Code Section 72; (2) Psychotherapist-Patient Privilege Violation pursuant to Cal. Evid. Code Section 1014; (3) Libel/Slander (Defamation) pursuant to Cal. Civil Code Section 44; (4) Conspiracy to Commit Offense or to Defraud pursuant to 18 U.S.C. Section 371; (5) False Personation pursuant to Cal. Penal Code Section 529; (6) Interference with Exercise of Civil Rights pursuant to Cal. Penal Code Section 422.6(a); and (7) Violation of Timely

Access to Care pursuant to Cal. Health and Safety Code Section 1367.03.

However, the body of the FAC itself lists four causes of action for: (1) Conspiracy to Commit Offense or to Defraud pursuant to 18 U.S.C. Section 371 and Fraudulent Billing pursuant to Cal. Penal Code Section 72; (2) Violation of SB 221 pursuant to Health and Safety Code Section 1367.03; (3) False Personation pursuant to Cal. Penal Code Section 529; and (4) Defamation of Character pursuant to Cal. Civil Code Section 44.

The court finds that Plaintiff's FAC fails to clarify which causes of action are being alleged, as the causes of action set forth in the FAC's caption are inconsistent with the causes of action listed at the top of the FAC and further within the body of the FAC itself.

Also, as Defendants note, the FAC identifies Defendants Burgher, McCue, Wegner, Russell, Acevedo, and Kaluhiokalani as "employees or agents of Abode Communities acting within the scope of their employment." (FAC, p. 2.) However, "Abode Communities" is not a named defendant, and Plaintiff later prays for judgment to be entered against "the Defendants, Didi Hirsch and its employees," which is inconsistent with the FAC's prior allegation. (FAC, p. 5.)

Further, the FAC refers to the conduct of "Defendants" in general within the FAC's second and fourth causes of action, such that it is not clear which allegations are made as to which individual Defendants.

Given Plaintiff's use of collective pleading and the inconsistencies within the FAC, the court finds that Defendants cannot reasonably respond to Plaintiff's FAC.

Accordingly, Defendants' special demurrer for uncertainty is SUSTAINED in its entirety.

C. Failure to State a Cause of Action: CCP Section 430.10(e)

As the court has sustained Defendants' special demurrer for uncertainty, the court declines to address Defendants' arguments made on the basis of Code of Civil Procedure Section 430.10(e).

D. Motion to Strike

The court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc. Section 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc. Section 436(b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc. Section 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc. Section 437(a).)

Here, Defendants move to strike: (1) all references purporting to assert private civil claims, damages, penalties, or relief under Penal Code Section 72, 529, and 422.6, Evidence Code Section 1014, 18 U.S.C. Section 371, Health and Safety Code Section 1367.03, HIPAA, and the No Surprises Act; (2) "[a]ll conclusory, inflammatory, and improper characterizations that purport to state legal conclusions rather than ultimate facts;" (3) Plaintiff's prayer for \$20,000.00 in compensatory damages; (4) Plaintiff's request for redress for civil rights violations and emotional distress; (5) Plaintiff's request for compensation based on Plaintiff's alleged shift from focusing on work to focusing on legal research and litigation; (6) Plaintiff's request that the court impose the maximum penalties allowed by law; and (7) any request for punitive or exemplary damages and supporting allegations.

Because the court previously sustained Defendants' special demurrer to Plaintiff's FAC in its entirety, Defendants' Motion to Strike is GRANTED.

E. Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 ("When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.")) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

Plaintiff has previously amended his complaint once. However, the FAC is wholly uncertain and alleges violations of code sections for which no private right of action exists. Plaintiff has not opposed the demurrer. Therefore, the court finds that the Plaintiff has not shown that a reasonable possibility of successful amendment is possible.

Therefore, the court DENIES Plaintiff leave to amend the FAC.

CONCLUSION

Based on the foregoing, Defendants' special demurrer to Plaintiff's FAC is SUSTAINED in its entirety, and Defendants' motion to strike is GRANTED. Leave to amend is DENIED.

Moving party is ordered to give notice of ruling.